

Application for expungement under R.C. 2953.32

Court of Common Pleas, Franklin County, Ohio - General Division, Criminal

State of Ohio v. Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.
Case 08CR001234.

The applicant requests expungement of the identified record under R.C. 2953.32, subject to the court's determination of the statutory requirements.

Applicant: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III. Other names: Alexandrina Katherine Montgomery Reyes. Date of birth: 1991-04-17.

Court of Common Pleas, Franklin County, Ohio; General Division, Criminal. Case 08CR001234. Assigned judge: Alex Example (synthetic assigned judge).

Address: 118 Maple Street, Apartment 1204, Rear Entrance, Columbus, Ohio 43215.
Telephone: 614-555-0142. Email: jordan.reyes@example.org.

Offense: Theft, R.C. 2913.02(A)(1), fifth-degree felony. Offense date: 2008-01-10; arrest date: 2008-01-11; arresting agency: Columbus Division of Police.

Count 1: Theft, R.C. 2913.02(A)(1), fifth-degree felony; disposition: Guilty; sentence fully discharged 2010-06-15; date: 2008-06-15.

Count 2: Theft, R.C. 2913.02(A)(1), fifth-degree felony; disposition: Guilty; sentence fully discharged 2010-06-15; date: 2008-06-15.

Conviction date: 2008-06-15. Final discharge: 2010-06-15. Applicable waiting period: ten years after the one-year sealing period. Earliest application: 2021-06-15.

I completed community control, all fines and restitution, and court-ordered requirements. I have maintained employment and have had no further convictions.

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I seek improved access to employment and housing after completing the sentence.

Other convictions: None. Pending criminal proceedings: No. Open warrants: No. Registration history: No. BCI record comparison completed: Yes. All same-incident charges inventoried: Yes.

Unpaid court costs only: Yes; court-cost balance: \$125. Indigency requested: No.

What is your full legal name, and have you used any other names? Answer:
Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.

What is your date of birth? Answer: 1991-04-17.

Which Ohio court sentenced you, and in which county? Answer: Court of Common Pleas,
Franklin County, Ohio.

What is the case number? Answer: 08CR001234.

What was the offence called, which Revised Code section was cited, and what degree was it?
Answer: Theft, R.C. 2913.02(A)(1), fifth-degree felony.

When did you finish the sentence, including any parole, all fines and all restitution? Answer:
2010-06-15.

Do you still owe court costs, as opposed to fines or restitution? Answer: Yes.

What every charge was that came out of the same incident, and how each one ended. Answer:
count: 1; charge: Theft, R.C. 2913.02(A)(1), fifth-degree felony; disposition: Guilty; sentence
fully discharged 2010-06-15; date: 2008-06-15; count: 2; charge: Theft, R.C. 2913.02(A)(1),
fifth-degree felony; disposition: Guilty; sentence fully discharged 2010-06-15; date:
2008-06-15.

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What other convictions do you have, in Ohio or anywhere else, with the degree and the date?

Answer: None.

Have you ever had to register under Chapter 2950? Answer: No.

Was the offence a traffic or OVI matter, a felony of violence, a sexually oriented offence, an offence against a child under 13, theft in office, a first or second degree felony, or first or second degree domestic violence? Answer: No.

Is any criminal case pending against you now, anywhere? Answer: No.

Do you have any out-of-state or federal convictions you want cleared? Answer: No.

Do you need to ask the court to excuse the fifty dollar application fee? Answer: No.

WHEREFORE, the applicant requests the relief stated above for the listed case and no other case.

Applicant signature: _____

Date: _____

Printed name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Certificate of service

Court of Common Pleas, Franklin County, Ohio; Case 08CR001234. State of Ohio v.
Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.

To be served: Franklin County Prosecuting Attorney, counsel for State of Ohio; confirm actual
opposing counsel and required recipients.

Documents: the application under R.C.2953.32 and all filed continuations and attachments.

I certify that I served the identified documents on the following actual recipients by the method
stated below. Complete only after actual service.

Recipient name and service address: _____

Additional required recipients: _____

Actual service method: _____

Actual service date: _____

Server signature: _____

Server printed name: _____

Local filing instructions

Your destination is Court of Common Pleas, Franklin County, Ohio, General Division, Criminal, determined from the supplied court record. This sample uses Franklin County. If your case was handled elsewhere, obtain that court's current filing instructions and required documents.

Franklin criminal filings use electronic filing. A self-represented filer may bring paper to the clerk for registration/scanning assistance and submission, or mail paper for clerk registration/scanning/filing. Incarcerated self-represented defendants submit paper themselves. Email and fax are not substitutes. Clerk: Franklin County Clerk of Courts, General Division, 345 South High Street, first floor, Columbus, OH 43215.

Original application, continuation and service pages use embedded Arial at 12 points, double spaced. Official Form96-C1 and the BCI form retain the issuer layout. Each submitted PDF is limited to 5 MB, with 25 MB together. Retain both submission receipt and final clerk acceptance; correct rejections and verify accepted timestamp. Proposed orders must be DOCX; no proposed order is required by the adopted packet and none is included.

Serve opposing counsel and unrepresented parties under Local Rule 19 and retain written proof. The included service certificate is unexecuted. Confirm recipient name/address and permitted method, and complete actual method/date/signature only after service. Court statutory notice does not replace this written proof. Self-represented defendants receive paper service.

R.C.2953.32 requires a \$50 fee unless indigent and permits an additional local fee up to \$50; the held Franklin listing states \$50 for conviction sealing. Confirm the exact total for your selected remedy before submission.

This sample does not request a fee waiver. If you cannot pay the filing fee, obtain the current court indigency affidavit and complete it truthfully before filing. Leave the court's indigency decision blank.

Local filing instructions

Review and sign the original application and date it personally. It is an original pleading, not an official state form.

Records to obtain and compare

Obtain BCI criminal history record. Request a criminal history record from BCI. It is the only practical way to assemble the full docket that ORC 2953.61 and the counting rules make decisive.

Check your answer to "What other convictions do you have, in Ohio or anywhere else, with the degree and the date?" against BCI criminal history record, and correct the packet if they disagree.

Obtain Certified disposition for each charge from the incident. Ask the clerk of each court for a certified copy of the disposition. Every charge from the incident is needed.

Check your answer to "What every charge was that came out of the same incident, and how each one ended." against Certified disposition for each charge from the incident, and correct the packet if they disagree.

Obtain Proof of final discharge. Gather the termination of supervision, the release, and receipts or a zero-balance statement for fines and restitution. Court costs are not part of the sentence for this purpose.

Check your answer to "When did you finish the sentence, including any parole, all fines and all restitution?" against Proof of final discharge, and correct the packet if they disagree.

Keep originals and certified dispositions for every charge from the incident. Compare the docket with your BCI record and proof of final discharge, including fines and restitution. Unpaid court costs alone do not delay final discharge. Synthetic fixture facts are not certified documents; obtain actual record evidence before filing.

Hearing, objections and post-order instructions

The court decides eligibility and relief. Do not fill judicial findings, prosecutor decisions, hearing dates or court/service certifications.

R.C.2953.32 and 2953.33 hearings follow the applicable 45–90 day statutory framework.

Follow the actual court notice, preserve prosecutor/victim notice and objection rights, and bring requested records; no generated hearing date is supplied.

Stop for legal assistance: The sealing-versus-expungement election, which is a legal choice with different waits and different exclusions.

Stop for legal assistance: Any first or second degree felony, any felony offence of violence, any sexually oriented offence, any registration history.

Stop for legal assistance: Any traffic or motor vehicle chapter offence, including OVI.

Stop for legal assistance: Any offence where the victim was under 13.

Stop for legal assistance: Theft in office.

Stop for legal assistance: First or second degree domestic violence.

Stop for legal assistance: Any third degree felony where the counting rule may bite.

Stop for legal assistance: Out-of-state or federal convictions, which move the venue to common pleas.

Stop for legal assistance: Any incident that produced more than one charge with different dispositions, which triggers ORC 2953.61.

Stop for legal assistance: Pending criminal proceedings or open warrants.

Stop for legal assistance: Prosecutor objection, and any victim objection where applicable.

Hearing, objections and post-order instructions

Stop for legal assistance: Choosing between sealing and expungement, which is a legal judgment with different waits and different exclusions.

Stop for legal assistance: Immigration exposure.

Sealable but not expungeable: third and fourth degree misdemeanor domestic violence under ORC 2919.25, and protection order violations under ORC 2919.27 or substantially similar municipal ordinances.

Ohio has both sealing and expungement and they are different remedies. Neither remedy means that the record is completely gone from everywhere.

"Eligible offender" no longer exists. SB 288 removed that definition from ORC 2953.31 and with it the numeric cap on how many convictions a person could seal. Do not use the former numeric conviction cap to decide whether you can apply; the current exclusions and other requirements still apply.

For § 2953.32 conviction expungements, BCI keeps a limited record for law-enforcement employment qualification and disqualification, while other entities receiving notice must destroy, delete and erase.

"Sentence" does not include payment of court costs, so unpaid court costs do not delay eligibility.

If relief is granted, retain the signed order and follow its agency distribution directions. The BCI request is a blank post-order transmission companion for the authorized sender, not an application for relief. Do not sign, date, check record-system boxes or certify a judicial order before those events occur.

Sealing does not destroy records. For expungement under R.C.2953.32(D)(5), BCI retains a

Hearing, objections and post-order instructions

limited record for law-enforcement employment qualification or disqualification even when other notified entities destroy, delete or erase records. Do not claim erasure everywhere.



DAVE YOST

OHIO ATTORNEY GENERAL



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TO ALL POLICE DEPARTMENTS, SHERIFF'S OFFICES & CLERKS OF COURTS

RE: SEALING AND/OR EXPUNGEMENTS

When submitting court orders for Sealing or Expungement of an arrest, BCI requests this form be completed and attached to the court order to assure accuracy of our records.

Defendant's Names: _____

Date of Birth: _____ Social Security Number: _____

Arresting Agency: _____ Arrest No.: _____

Arrest Charge: _____ Date of Arrest: _____

Felony: _____ Misdemeanor: _____ ITN: _____

DNA Collected: Yes ☐ OR No ☐

Ohio BCI No.: _____ FBI No.: _____

Common Pleas/Juvenile Court Case No.: _____

Municipal Court Case No.: _____

Conviction ☐ Dismissal ☐ Juvenile ☐

Conviction Charge: _____

Final Disposition of Conviction/Adjudication: _____

Send by Fax to the Attention of: **Identification Section**

Or by email to: **Expungement.Submissions@ohioattorneygeneral.gov**